

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-31

NIELSEN & BAINBRIDGE, LLC

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”), and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” or “OOCL” and, collectively with Complainant, the “Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 30-day extension of the remaining deadlines set forth in the Presiding Officer’s February 4, 2026 Scheduling Order to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible.

I. The Current Schedule

On February 4, 2026, the Presiding Officer entered a Scheduling Order with the following deadlines relevant to this Motion:

EVENT	CURRENT DEADLINE
Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories	April 6, 2026
Substantial completion of productions of documents and ESI in response to initial RFPs	April 20, 2026

Parties to file Third Joint Status Report	May 7, 2026
Complete depositions of fact witnesses	May 21, 2026
Last day to serve interrogatories, requests for admission, and RFPs	May 21, 2026
Disclosure of initial expert reports, if any	June 4, 2026
Disclosure of rebuttal expert reports, if any	June 19, 2026
Complete expert depositions	July 1, 2026
Close of discovery	July 1, 2026
Complainant's initial brief, proposed findings of fact, appendix	July 29, 2026
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	August 26, 2026
Complainant's reply and responses to proposed findings of fact	September 9, 2026

The Parties submit the below as good cause for an additional 30-day (plus slight modifications to accommodate deadlines falling over weekends) extension of each of the respective dates at issue:

The Parties have worked together to start the discovery process in the present matter and began doing so by serving their initial requests for production of documents and interrogatories (the "Discovery Requests") on February 9, 2026. With the initial Discovery Requests and the corresponding objections and responses exchanged, the Parties executed an ESI Protocol on February 4, 2026. The Parties worked together to finalize a proposed Protective Order, filed on February 4, 2026, which was granted with modifications on February 5, 2026. The Parties submitted objections and responses to the initial Discovery Requests on March 9 and March 11, 2026 and further discussed any outstanding issues between the Parties.

Complainant has worked diligently with the appropriate parties to make sure it is ready to make productions to Respondents, issuing its first production on March 24, 2026 and its second on March 31, 2026. Following the exchange of initial Discovery Requests, Complainant has worked with its data vendors, AlixPartners and KPMG, to ensure that documents are ready for

further collection, review, and production to Respondents. Complainant has met with its vendors on multiple occasions to discuss the ESI Protocol, the collection and ingestion of additional electronic documents and data, searches of relevant data, and review, and has also identified additional custodians and electronic data sources with potentially relevant data. Complainant completed search and review protocols on the approximately 3.4 million documents collected from selected custodians and electronic files. Complainant is currently reviewing documents, and aiming to make its third production within less than one week of filing this motion and continuing on a rolling basis.

Respondents also commenced collection, search and review, in accord with agreed ESI protocols, and made five productions of documents on March 10, 2025, completing their anticipating document productions.

While Complainant still works with its vendors to complete collection and processing of the data, it is also in the process of reviewing the potentially millions of documents for relevancy, privilege, confidentiality, and the like. The amount of data for review between the Parties and the ongoing collection processing is a very significant undertaking, with each Party having potentially over 100,000 initially responsive documents. Even with the assistance of outside ESI vendors and legal service providers for collection and initial review for relevancy, responsiveness to discovery demands and the other parameters such as privilege that pertain to that process are extremely time consuming, making the process daunting even with all best efforts.

Even as further productions are made, the Parties will still need the time to review the voluminous batches of document productions, which is reflected in the one-month request herein. Simply stated, this request is based on the pace of the Parties' productions and review even when

using all resources and all good faith efforts. To address it in any workable manner, using all reasonable efforts, the Parties submit that the request made herein be granted.

II. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for an Extended Timeframe

The facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Scheduling Order's April 20, 2026 deadline for substantial completion of document (including ESI) production. To that end, *the Parties have both made productions prior to this Motion are on track to continue making rolling productions, as needed.*

As part of its document and data collection process, Complainant is working with its vendors to collect documents from 31 custodians as well as network share drives and other sources of data. Respondents have also been working closely with their e-discovery partners to expedite this process and have made significant progress but the number of custodians, even when winnowed down by relevancy and responsiveness is expected at the end of the process to still be in the hundreds of thousands of documents. From the documents collected, both Parties must manually review them for the information they offer, organize them, address any privilege issues and finally marshal a working knowledge of all to allow further steps, such as depositions, to be done in a meaningful manner. That process necessarily requires substantial time and care. This review will cover hundreds of thousands of documents to be reviewed by the Parties for production.

The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continue to do so, but there is no question the entire process has been time and effort intensive.

As a part of the ongoing review and rolling productions process, the Parties will need to work to review the substantial amount of documents that are likely to be pulled in by the Parties' ESI Protocol terms. The Parties submit that the substantial volume of documents, the need for thorough review, and the pace that the documents can be intelligently reviewed is a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively and each Party is not prejudiced by the fact that a very large amount of documents have been collected in accord with discovery demands properly put forth.

B. The Large Discovery Volumes Will Impact Other Case Milestones

The Parties remain respectful of the deadlines set forth in the February 4, 2026 Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the potential size of the responsive documentation have made it clear to the Parties that even with all their best efforts, they will not be able to complete review of document discovery within the present deadlines. Consequently, the Parties would not be able to adequately take depositions based upon a full factual record and further would not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have served written discovery requests, including interrogatories and requests for production, and have provided objections and responses to such requests. As mentioned above, the Parties have begun making document (including ESI) productions. The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer. The Parties held a meet and confer regarding discovery production and interrogatory response issues and are working cooperatively to try and resolve any outstanding discovery requests.

The Parties are aware of the prior Order of this court and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

The Parties will endeavor to prevent any further requests for additional time, but limited extension requests may become necessary if, for example, issues arise related to the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondents). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues to the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of

time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.”

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

III. Conclusion

Given that the Parties are still working diligently to review and produce documents, the Parties respectfully submit that an extension of the deadline to complete depositions of fact witnesses in the Presiding Officer’s February 4, 2026 Scheduling Order is necessary to allow the Parties a fair opportunity to review produced documents, depose each other’s respective fact witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended schedule, which (accounting for weekends) moves 30 days from the deadline of the February 4, 2026 Scheduling Order to complete depositions of fact witnesses and deadlines following, but maintains the current

substantial completion of productions of documents and ESI in response to initial RFPs deadline
and date of the Third Joint Status Report:

EVENT	PROPOSED DEADLINE
Substantial completion of productions of documents and ESI in response to initial RFPs	April 20, 2026 (unchanged)
Parties to file Third Joint Status Report	May 7, 2026 (unchanged)
Complete depositions of fact witnesses	June 22, 2026
Last day to serve interrogatories, requests for admission, and RFPs	June 22, 2026
Disclosure of initial expert reports, if any	July 6, 2026
Disclosure of rebuttal expert reports, if any	July 20, 2026
Complete expert depositions	July 31, 2026
Close of discovery	July 31, 2026
Complainant's initial brief, proposed findings of fact, appendix	August 28, 2026
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	September 25, 2026
Complainant's reply and responses to proposed findings of fact	October 9, 2026

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: April 9, 2026

Respectfully submitted,

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